7. He/she must not have been convicted for promoting enmity between different groups or for the offence of bribery.

8. He/she must not have been punished for preaching and practicing social crimes such as untouchability, dowry and sati.

On the question whether a member has become subject to any of the above disqualifications, the governor's decision is final. However, he/she should obtain the opinion of the Election Commission and act accordingly.

Disqualification on Ground of Defection The Constitution also lays down that a person shall be disqualified for being a member of either House of state legislature if he/she is so disqualified on the ground of defection under the provisions of the Tenth Schedule.

The question of disqualification under the Tenth Schedule is decided by the Chairman, in the case of legislative council and, Speaker, in the case of legislative assembly (and not by the governor). In Kihoto Hollohan case[6] (1992), the Supreme Court ruled that the decision of Chairman/Speaker in this regard is subject to judicial review.

3. Oath or Affirmation

Every member of either House of state legislature, before taking his/her seat in the House, has to make and subscribe an oath or affirmation before the governor or some person appointed by him/her for this purpose.

In this oath, a member of the state legislature swears:

1. to bear true faith and allegiance to the Constitution of India;

2. to uphold the sovereignty and integrity of India; and

3. to faithfully discharge the duty of his/her office.

Unless a member takes the oath, he/she cannot vote and participate in the proceedings of the House and does not become eligible to the privileges and immunities of the state legislature.

A person is liable to a penalty of ₹500 for each day he/she sits or votes as a member in a House:

1. before taking and subscribing the prescribed oath or affirmation; or

2. when he/she knows that he/she is not qualified or that he/she is disqualified for its membership; or

3. when he/she knows that he/she is prohibited from sitting or voting in the House by virtue of any law made by the Parliament or the state legislature.

The members of a state legislature are entitled to receive such salaries and allowances as may from time to time be determined by the state legislature.

4. Vacation of Seats

In the following cases, a member of the state legislature vacates his/her seat: